

Superior Court of California, County of Tuolumne

Consolidated Calendar

Hon: Hallie Gorman Campbell

Department 2

June 3, 2026

8:30 am

DA Case #

Date Filed

17 CV66705

Lee Pagni v City of Sonora et. al.

12/04/2024

Lee Pagni

Attorney: Terry Stark

City of Sonora

Attorney: Angela Shrimp de
la Vergne

William Canning

Motion Hearing - Other

Request for Augmentation of Record

Motion Hearing - Amend

File 3rd Amended Petition

12/04/2024 Petition

File Tracking

03/17/2025 High Density

This is a citizen's dispute regarding approvals and zoning adjustments authorized for a mixed use commercial/residential project proposed for 956 Oregon Street. In addition to height and density concerns, plaintiff alleges that the approvals were made without the required public meetings and CEQA reviews. Plaintiff filed a petition for administrative mandamus, seeking an order compelling the planning commission and/or the city to revisit the project and fulfill obligations relating to pre-approval vetting.

Petitioner's request for leave to amend the operative petition appears to this Court to be reasonable. Contrary to Respondent's contention, this Court does not see the TAP as introducing "a standalone challenge to the City's 2017 General Plan revision," nor does it see the TAP as mounting a direct attack on Resolution 08-04-2025-A. Yes, the request for leave is procedurally defective, but since Petitioner's opening brief is already on file, the risk that the TAP adds novel legal theories (as alleged) is mitigated. There is no reason to advance further legal fees running (and defending) a new motion for leave when no prejudice exists.

As for the request to augment the record, this is more problematic because (1) the request is very late and (2) the request is ambiguous. Ordinarily, a party convinced that records are missing completes a CPRA request and proposes specific items to be included in the administrative record, not make a general category request and leave it to the Respondent and this Court to guess whether compliance has occurred. Petitioner will need to refine the request before this Court can make a meaningful analysis. However, this Court notes that Petitioner has just recently lodged 1,500 pages of an "updated" administrative record which he presumably wishes to have treated as part of the official record. There are formal procedures that Petitioner needs to follow in this instance, and this Court is not going to permit Petitioner to freely balloon this case into more than it is.